

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN SERBIA

Complete Community Opposition How-To

This guide uses the Serbian terms and bodies you'll actually run into — the EIA and its public insight, the spatial plan and strategic assessment, the Administrative Court, the Aarhus Convention — and explains each in plain words the first time. Serbia is an EU candidate bound by the Aarhus Convention, and that external leverage matters throughout.

INTRODUCTION & FRAMEWORK

In the fertile **Jadar Valley** near Loznica in western Serbia lies one of Europe's largest lithium deposits — and the plan by the Anglo-Australian giant **Rio Tinto** to strip-mine it, with a processing plant and a tailings landfill, promising to supply most of Europe's lithium. Against it rose something rare: in 2021, farmers and environmentalists from the valley, joined by movements across the country, brought hundreds of thousands into the streets and onto the roads and railways. They fought not only the mine but the laws being rushed through to ease it — changes to the **expropriation** and **referendum** laws. And they won: in **January 2022 the government abolished the spatial plan and annulled every administrative act tied to Rio Tinto**. The largest foreign mining investment in the country's history was stopped by the street. In Serbia, mass mobilisation does not just protest — it has forced the state to retreat.

The farmers and environmentalists of the Jadar Valley, joined by movements across Serbia, stopped Rio Tinto's lithium mine — and the levers they used are real, in a country that is not one of the hardest places in the world. Serbia is an **EU candidate**, bound by the **Aarhus Convention**, with an environmental-permitting system built on European models and **courts** that hear environmental cases. And it has a proven record of **people-power** forcing retreats — mass mobilisation there does not just protest, it has forced the state to abolish a spatial plan and annul every act tied to a mine. But these tools have real limits, and this guide states them plainly, and a political win can be reversed. In **July 2024 the Constitutional Court ruled that the 2022 cancellation had been unconstitutional**, and the government adopted a decree **reinstating the spatial plan** — just as Serbia signed a critical-raw-materials deal with the EU. Fresh mass protests erupted; the company later paused the project, but the environmental assessment and permitting still lie ahead. The executive is determined, "strategic" projects enjoy powerful state and foreign backing, high courts have been accused of ruling under political pressure, and **protesters have been arrested and campaigners smeared**. So the Jadar fight is not over — it has moved from the street to the terrain of the EIA, the courts, and continued mobilisation; the levers are real and mobilisation genuinely works, but a victory must be defended, and the fight often shifts ground.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A major Serbian project needs its **spatial plan** (with a strategic environmental assessment) and its **EIA** (with public insight); it can be challenged in the **Administrative Court**; it is exposed to the **Aarhus Convention** and the **EU accession** process; its foreign parent is sensitive to investors and banks; and — uniquely here — it can be stopped by **mass mobilisation**. Every one of those is a link you can grab. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **Mass mobilisation genuinely works in Serbia** — it forced the state to abolish the Jadar plan. It is the country's most distinctive and powerful lever.
- **The EIA, the spatial plan, and the Administrative Court are real** — a defective strategic assessment or public insight is a genuine ground.
- **The foreign parent and the EU process are external levers** — Rio Tinto answers to investors and banks, and Serbia's EU accession runs through environmental scrutiny.
- **But a win can be reversed, and the state pushes back** — expect the fight to shift to the EIA and permitting, expect arrests and smears, and plan to defend a victory.

Read the whole guide once before you move. Two habits run through it: **use the rights the law gives you** — the public insight, the strategic assessment, the Administrative Court, Aarhus — and **run every front at once**: the documents, the participation, the courts, the movement, the money, the EU. That's how Jadar was stopped in 2022 — and how the fight continues.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

Two decisions matter most. The **spatial plan** (often a "special purpose area" plan) rezones the land, and it requires a **strategic environmental assessment (SEA)**. The **environmental impact assessment (EIA)** approves the specific project, with **public insight (javni uvid)** and a public hearing. The environment ministry, provincial, or local authorities issue these depending on the project. The **Administrative Court** reviews their legality. And above them sit the **Aarhus Convention** and the **EU accession** process. Know which decision you can contest, and aim there.

How a Project Moves — and Where You Jump In

The spatial plan and strategic assessment. The land is rezoned by a spatial plan, assessed by an SEA, with public participation. *Your opening — often the earliest and best:* a spatial plan adopted without a proper strategic assessment or genuine participation can be challenged (the Jadar plan was abolished at exactly this level).

The EIA and public insight. The developer's EIA study goes to **public insight** and a public hearing. *Your opening — and it arms every later step:* submit substantive objections during public insight, and insist it's held in the right place, in Serbian, for long enough.

The decision. The authority approves the EIA. *Your opening:* challenge it in the Administrative Court.

Construction. *Your opening:* breaches, and continued mobilisation.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — a foreign parent listed abroad (Rio Tinto trades in London and Sydney) is sensitive to investors and reputation. **What it still needs** — the plan not final or under challenge, the EIA not approved, financing not closed: whatever's missing is the soft spot. **Who's paying and insuring it** — banks and insurers wary of a project the public overwhelmingly opposes.

Who's Supposed to Be Watching

Each is an ally or an arena. The **environment ministry and local authorities** run the plan and the EIA and can be pressed. The **Administrative Court** reviews their legality. The **Aarhus Convention Compliance Committee** hears complaints that Serbia denied information, participation, or access to justice. The **EU** scrutinises Serbia's environmental compliance through the accession process (Chapter 27). The **Commissioner for Information** enforces access to information, and the **Ombudsman** takes maladministration complaints. And Serbia's **powerful environmental movement, its civic platforms, and its press** are the forces that reach furthest — the combination that forced the 2022 retreat.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: how much public feeling the project has stirred, whether the plan or EIA is defective, and how determined the state and foreign backer are.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Objections in public insight	15–35%	during EIA	low	On record; conditions or a redo
Challenge to the spatial plan / SEA	25–50%	months–2 yr	low–mod	Plan quashed (the Jadar level)
Administrative Court challenge to the EIA	25–50%	1–3 yr	low–mod	Approval annulled
Aarhus complaint / EU accession pressure	20–45%	1–3 yr	low	Serbia found non-compliant; external pressure
Investor / bank / insurer pressure	20–45%	months–yr	low	Money or cover withdrawn
Mass mobilisation	35–60%	months–yr	low	State retreat (Jadar 2022)
Everything together (public roused, defects, EU watching)	45–65%	1–3 yr	low–mod	Stopped, quashed, delayed, paused
Everything together (strategic project, state-backed)	20–45%	1–3 yr	low–mod	Delayed, conditioned, exposed (and maybe revived)

The lever that moves the needle most is **mass mobilisation**, backed by the spatial-plan and EIA challenges, the Aarhus and EU pressure, and the money. Jadar shows the ceiling (a mega-investment stopped by the street) and the honest limit (revived two years later by the Constitutional Court). So aim to win *and* defend the win — and treat delay, a quashed plan, a paused project, and exposure as real wins.

On cost: objecting, organising, and using the Aarhus and access-to-information rights are cheap; a foreign parent listed abroad is uniquely exposed to investor and reputational pressure; and mass mobilisation, Serbia's sharpest tool, costs mainly courage and organisation.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this plan, this EIA, this defect — is strong. Answer five questions in writing.

1. What is it, and who's behind it? Name the project, the company, its foreign parent, its financiers.

2. Where is it, and what does it touch? Get the boundaries and lay them over farmland and water, a river and its basin, forest, protected areas, communities. **Water and farmland rouse the strongest public feeling** — Jadar mobilised a nation over groundwater and fertile valley land.

3. What stage is it at, and what's the next deadline? Is a spatial plan being adopted (with an SEA)? Is the EIA in public insight? Has it been approved (opening the Administrative Court)? These openings are time-bound.

4. What does it still need that it lacks? A plan not final, an EIA not approved, financing not closed. The missing piece is the soft spot.

5. Who else is affected, and who already opposes it? Neighbours, farmers, the local association, the national civic and environmental platforms (like Ne damo Jadar and the wider movement). Serbia has a ready, proven movement to join.

What this looks like in real life. A community learns a mine is planned in its valley, its groundwater and farmland at risk, via a "special purpose area" spatial plan few noticed. The five questions yield: a foreign parent behind it; a site threatening water and fertile land (the mobilising levers); a spatial plan and EIA in process; a project still needing them; and a coalition of farmers and national movements. That's the Jadar pattern — challenge the plan, object in public insight, and mobilise the country.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof. Build it in three layers.

Layer one: the paper trail. Get the documents the decisions rest on — the spatial plan and its strategic assessment, the EIA study, the approvals and conditions, the water and soil studies. Serbia's access-to-information rights (and the Commissioner) force out what isn't public. Then read them hard for flaws — a missing or inadequate strategic assessment, a public insight held in the wrong place or too briefly, a screening that wrongly treated a major project as minor, a groundwater risk minimised.

Layer two: the ground truth. Dated, located photographs and video of the site, the water, the farmland, the river — baseline images before any damage most of all — and the testimony of affected farmers and residents.

Layer three: the map of water, land, and defects. Lay the project over the groundwater, the farmland, the river and its basin, and protected areas, so the harms — and the strongest public arguments — are visible. Walking into the Administrative Court or public insight with the plan, the EIA, and that map is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The spatial plan and SEA, the EIA study, the approvals and conditions, the water and soil studies** — from the ministry and local authorities; force out the rest via the access-to-information rights and the

Commissioner (8A).

- **Land and expropriation records** — from the local authorities.
- **Ownership and financing** — company records, the foreign parent's filings, and lender/insurer information.
- **The water-land-defects map** — groundwater, farmland, the river and basin, and protected areas, laid over the site.
- **Dated site evidence and named testimony** — photographs marked with date and place, and farmers' statements.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and in Serbia, uniquely, people-power has forced the state to retreat. Build your coalition in four moves.

Start with a tight core. The farmers and neighbours most affected, the people who know the land and water, a few tireless organisers, and respected local figures.

Form or join a movement. Serbia has a proven ecosystem of local associations (like Ne damo Jadar) and national civic platforms that turned Jadar into a mass movement. Link up early, and hold meetings where people see the evidence — the map of the mine over their water and land.

Build the mass. Mobilisation is Serbia's sharpest lever, so build for scale: the whole affected region, allied communities, the diaspora, and the national movement — the combination that filled the streets and roads over Jadar.

Bring in the lawyers and experts — early. Public-interest lawyers who run Administrative Court and Aarhus cases, and the scientists (especially hydrologists) who can show the groundwater threat. Keep mobilisation peaceful and disciplined, and be ready — arrests and smears are real.

Build to last, and defend the win. Serbian fights run for years, and — the Jadar lesson — a win can be reversed. Build clear roles, a secure shared archive, a way to decide together, a plan for the financial and emotional toll, and a plan to guard a victory the state may try to revive.

STEP 4: LEGAL CHALLENGES, AARHUS & THE EU

Law is a real Serbian lever — and it's reinforced by external pressure the state cannot fully control.

Challenge the Plan and the Assessment First

The earliest and often best legal opening is the **spatial plan and its strategic environmental assessment**: a plan adopted without a proper SEA or genuine participation can be challenged (Jadar's plan was abolished at this level). And submit substantive objections during the EIA's **public insight**, insisting it's genuine — the record you build there is the basis of the later court case.

The Administrative Court

If the EIA (or the plan) is approved unlawfully, challenge it in the **Administrative Court (Upravni sud)** — on grounds of a defective assessment, an inadequate public insight, a wrongful screening, or a breach of the law's own steps. The courts hear these cases, though be aware high courts have at times been accused of ruling under political pressure — so pair the legal case with the movement and external pressure.

Aarhus and the EU — the External Levers

Serbia is a party to the **Aarhus Convention**: if you're denied environmental information, genuine participation, or access to justice, complain to the **Aarhus Convention Compliance Committee**. And Serbia is an **EU candidate**, its environmental compliance scrutinised through the accession process (Chapter 27) — a foreign, state-backed project that tramples environmental law is a liability Belgrade must answer for in Brussels. Run these external fronts in parallel; they reach where the domestic system is weakest.

The Honest Limits

Straight talk: the courts, Aarhus, and the EU are real levers, but litigation is slow, high courts may bend to political pressure, and — the Jadar lesson — a win can be reversed by a later court ruling and a government decree. So use the strong tools — the plan and EIA challenges, the Administrative Court, Aarhus, the EU — but pair them with mass mobilisation and the money pressure, plan to defend and re-fight, and count a quashed plan, an annulled EIA, delay, a paused project, and exposure as wins alongside a clean stop.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A document becomes a legal flaw. Not "the mine is bad" but *"the spatial plan was adopted without a proper strategic assessment and genuine participation — it can be quashed."*

Groundwater becomes the mobilising claim. *"This threatens the water our valley drinks and farms with — a risk the assessment barely studied."*

Aarhus becomes an external front. *"Serbia denied us genuine participation — a breach of the Aarhus Convention we've reported."*

The harm becomes a mass story. *"The fertile valley and clean water our families have always had — sold to a foreign company over our heads."*

Match it to the venue: the plan flaw to the Administrative Court; the participation breach to Aarhus; the EU-compliance failure to Brussels; the water and land to the streets and the press.

STEP 5: MEDIA STRATEGY

In Serbia, publicity and mobilisation are inseparable — Jadar became a national cause that filled the streets. A press (though pressured), civic platforms, and mass feeling make the media front central.

Lead with people and place, not procedure. Not "the SEA was inadequate" but "the fertile valley and clean water our families have always had — sold to a foreign company over our heads." Use your strongest material: dated photographs, the map of the mine over the water and land, the science of the groundwater threat, and named farmers.

Work several audiences at once. Local and national press and social media build the mass; the civic platforms amplify; and international and European media reach the foreign parent's investors and the EU. Make it easy: captioned photos, accurate summaries, a map, strong voices.

Two hard rules. Accuracy above all — one exaggeration can be used against you, and campaigners are smeared. And protect people — keep mobilisation peaceful and disciplined, and expect arrests.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Access-to-information request (to the authority / Commissioner).

Subject: Request for environmental information — [project].

"Under the access-to-information and Aarhus rights, we, residents of [place], request the spatial plan and strategic assessment, the EIA study, the approvals and conditions, and the water and soil studies for [project] at [location]. [Contact.]"

8B — Objection in public insight.

Subject: Objection — public insight on [project].

"We, residents of [place], object to [project]: [the strategic assessment is inadequate; the public insight was held in the wrong place / too briefly; the groundwater risk was minimised]. We ask that the plan/EIA be rejected or a proper assessment required. [Attach evidence.]"

8C — Challenge to the plan / EIA (to a lawyer).

Subject: Administrative Court challenge — [project].

"We instruct you to challenge the [spatial plan / EIA approval] for [project], on the grounds that [it lacked a proper strategic assessment / genuine participation / the screening was wrong]. [Attach the plan/approval and our evidence.]"

8D — Aarhus complaint.

Subject: Aarhus Convention complaint — [project], Serbia.

"We report that Serbia denied us [environmental information / genuine participation / access to justice] regarding [project] at [location], contrary to the Aarhus Convention. [Attach evidence.]"

8E — To the foreign parent's investors / banks.

Subject: Environmental, legal, and reputational risk in [project].

"We understand your institution may be [invested in / financing] [project] at [location], which the public overwhelmingly opposes and which faces active legal and Aarhus challenge. We ask you to weigh this against your own standards. [Contact and evidence summary.]"

8F — Letter to the press.

Subject: [Community] moves to protect [valley / water / land] from [project].

"For generations the people of [place] have farmed [the valley] and drunk [the water] at [location]. Now [project], by [foreign company], threatens it — decided over our heads. We can provide photographs, documents, a map and interviews. [Contact.]"

8G — To the EU (accession scrutiny).

Subject: Environmental compliance and [project] — Serbia's accession.

"We wish to raise, in the context of Serbia's EU accession and Chapter 27, that [project] at [location] proceeds in breach of environmental-assessment and participation law. [Attach evidence.]"

8H — Rallying the community.

Subject: We can stop this — here's how.

"[Project] threatens [our valley / water / land]. Serbians stopped the country's largest foreign mine by filling the streets — that is Jadar. With the plan challenge, the EIA, Aarhus, the EU, and mass mobilisation behind us, we have a real chance — and we must be ready to defend a win. Please join us — peacefully. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Nail down the project and its footprint, and look for the water and farmland levers.** These rouse the strongest public feeling.
2. **Object in public insight (8B), and look for a defect in the spatial plan / strategic assessment — often the earliest win.**
3. **Request the documents (8A) via the access-to-information and Aarhus rights.**
4. **Photograph everything, with dates and places.** Baseline images before any damage matter most.
5. **Get a lawyer for the plan/EIA challenge and an Aarhus complaint (8C/8D).**
6. **Link up with the national movement and mobilise — peacefully (8F/8H).** Mass mobilisation is Serbia's sharpest, proven lever.

Even lean, those six use your rights, build the record, open the external fronts, and connect you to a proven movement.

WHEN THE SYSTEM IS TILTED

Serbia's tools are real, but the field is often tilted, and you must plan for it.

When it's a "strategic" project. State and foreign backing, and EU raw-materials interest, weigh heavily. Don't fold: mobilise, challenge the plan and EIA, use Aarhus and the EU process, and pressure the foreign parent's investors.

When a win is reversed. This is the Jadar lesson: a political win can be undone by a court ruling and a decree. Plan to defend a victory, re-fight on the EIA and permitting terrain, and keep the movement alive.

When courts bend to pressure. High courts have been accused of ruling under political pressure. Pair the legal case with mobilisation, the money, and the external Aarhus and EU levers, which the state controls less.

When protesters are arrested and smeared. Keep mobilisation peaceful and disciplined, get legal support, protect the vulnerable, and use the arrests and smears themselves as evidence of the state's conduct.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Serbia has documented problems with the capture of strategic projects by political and foreign interests, so this matters.

How to spot it. Approvals against the evidence; laws rushed through to ease a project (the expropriation and referendum changes around Jadar); a public insight engineered to exclude; contracts or land steered to the connected; benefits to a few while the community carries the harm.

Who's supposed to guard against it. The **Anti-Corruption Agency** and the **prosecutors** investigate graft. The **State Audit Institution** examines public money. The **Commissioner for Information** and the **Ombudsman** take access and maladministration complaints. The **Administrative Court** can annul a tainted approval, and the **EU** scrutinises the rule of law through accession. And Serbia's **remaining independent press and civic platforms** have exposed captured projects.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the anti-corruption bodies, the Commissioner, and trusted journalists rather than making accusations you can't back. Pair the exposure with the legal challenge, the mobilisation, and the EU front.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; pinning down the water and land levers aims it; the movement builds the mass; the plan and EIA challenges and Aarhus press the case; the media and the money raise the cost; the EU adds external pressure. Together they multiply. One at a time, they stall — and remember to defend the win.

Early on (weeks 1–8): nail down the project, its footprint, and the water and farmland levers; object in public insight and look for a plan/SEA defect; request the records; photograph the baseline; get a lawyer; link up with the national movement.

In the thick of it (months–years): challenge the plan and EIA in the Administrative Court; file an Aarhus complaint and raise EU-accession compliance; pressure the foreign parent's investors; build the mass and open the media front.

The long haul (years): carry the cases through the courts and the Aarhus and EU processes; keep the movement alive; hold the line for a quashed plan, an annulled EIA, delay, a paused project, or a clean stop — and defend and re-fight if the win is reversed.

FINAL ASSESSMENT

Stopping a destructive project in Serbia can be done — the people of the Jadar Valley and a nationwide movement forced the government to abolish the largest foreign mining investment in the country's history. Hold both truths. Serbia's tools are real: an EIA and public insight; a spatial plan and strategic assessment you can challenge; an Administrative Court; the Aarhus Convention and its compliance committee; the EU accession process; a foreign parent exposed to its investors; and — the sharpest lever — mass mobilisation

that has forced the state to retreat. And the constraints are real: determined state and foreign backing, courts that may bend to pressure, arrests and smears, and — the Jadar lesson — a win that can be reversed.

Here's the discipline that wins. Find the water and farmland that rouse a movement, and the defect in the plan or the EIA, and pry loose the record. Object in public insight, and challenge the spatial plan and its strategic assessment — often the earliest win. Take the case to the Administrative Court, file an Aarhus complaint, and raise it in Serbia's EU accession. Pressure the foreign parent's investors, and — above all — mobilise, peacefully and at scale. Then defend the win, and be ready to re-fight on the EIA terrain. Count a quashed plan, an annulled EIA, delay, a paused project, and exposure as wins alongside a clean stop. That's what Jadar did — the street, the courts, and the world's attention together. So can you.